

Sita Sharan Prasad & Ors vs State Of Bihar & Anr on 14 July, 2016

Author: Anjana Prakash

Bench: Anjana Prakash

IN THE HIGH COURT OF JUDICATURE AT PATNA

Criminal Miscellaneous No.35836 of 2014

Arising out of PS.Case No. -29 Year- 2013 Thana -SHASTRINAGAR District- PATNA

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1. Sita Sharan Prasad, Son of Murli Manohar Prasad
2. Asha Prasad, Wife of Sita Sharan Prasad
3. Abhishek Kumar Sinha, Son of Sita Sharan Prasad
All resident of Asha Sadan, Yamuna Path, Back of Punjab National Bank, New Bye Pass Road, Anisabad, P.S. - Beur, District - Patna.
4. Pandey Rama Shankar Prasad @ Bhulan, Son of Late Pandey Himanchal Prasad
Resident of Chitragupta Path, New Area Jhakanpur, P.S. - Jhakanpur, District- Patna.

.... Petit

Versus

1. The State of Bihar.
2. Aparna Sinha, Wife of Vikash Chandra, Daughter of Kesho Prasad, Resident of Adarsh Colony, West Patel Nagar, P.S.- Shashtri Nagar, District- Patna.

.... Opposite Par

with

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Criminal Miscellaneous No. 37940 of 2014

Arising Out of PS.Case No. -29 Year- 2013 Thana -SHASTRINAGAR District- PATNA

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Vikash Chandra, Son of Sita Sharan Prasad, Resident of Asha Sadan, Yamuna Path, Back of Punjab National Bank, New Bye Pass Road, Anisabad, P.S. - Beur, District - Patna, presently residing at Village - Saraya, C/o - Subhash Chandra, P.S. - Belsand, District - Sitamarhi.

.... Petit

Versus

1. The State of Bihar.
2. Aparna Sinha, Wife of Vikash Chandra, Daughter of Kesho Prasad, Resident of Adarsh Colony, West Patel Nagar, P.S. - Shastri Nagar, District - Patna.

.... Opposite Party/s

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Appearance :

(In Cr.Misc. No.35836 of 2014)

For the Petitioner/s : Mr. Satyavrat Verma, Adv.

For the State : Mr. R.B.S. Pahepuri, A.P.P.
(In Cr.Misc. No.37940 of 2014)
For the Petitioner/s : Mr. Satyavrat Verma, Adv.
For the State : Mr. Ansarul Haque, A.P.P.

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CORAM: HONOURABLE JUSTICE SMT. ANJANA PRAKASH
ORAL JUDGMENT
Date: 14-07-2016

Heard learned counsel for the Petitioners and the State.
Patna High Court Cr.Misc. No.35836 of 2014 dt.14-07-2016

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The Petitioners seek quashing of the order dated

7.6.2014

passed by the Judicial Magistrate, 1st Class, Patna, Distt.

Patna, in Shastri Nagar P.S. Case No. 29 of 2013.

It is agreed that the dispute has now been finally resolved on payment of Rs.4,00,000/- by Demand Drafts No. 013835, 013714, 013836 and 013715, dated 4/5.7.2016 for Rs.1,00,000/- each which has received by the Opposite Party No. 2, who signs in the margin of the order sheet dated 27.8.2014 in token of receipt of the same.

In view of such understanding, further Proceedings of Shastri Nagar P.S. Case No. 29 of 2013 pending before the Judicial Magistrate, 1st Class, Patna, Distt. Patna, is hereby, set aside.

The Parties are directed to appear before the concerned Family Court within a period of three weeks from the date of receipt of this order and file an application under Section 13B of Hindu Marriage Act for mutual divorce.

The concerned Family Court shall pass necessary orders on appearance of the Parties who have appeared personally before this Court and submit that they do not wish to continue their matrimonial relationship.

(Anjana Prakash, J) S.Ali/-

AFR/NAFR NAFR
CAV DATE N/A.

Date